

The Auroville Foundation Act, 1988

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Union of India - Act

The Auroville Foundation Act, 1988

UNION OF INDIA

India

The Auroville Foundation Act, 1988

Act 54 of 1988

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The Auroville Foundation Act, 1988

No. 54 OF 1988

1413.

The cultural township of Auroville, situated about 10 kms. north of Pondicherry, was founded on 28th February, 1968, on the basis of a charter announced by the Mother where people of different countries are expected to live together in harmony in one community and are expected to engaged themselves in cultural, educational, scientific and other pursuits aiming at human unity.

2. The formation and growth of Auroville was welcomed by the Government of India as a concrete effort of creating international understanding. Resolutions were also sponsored by the Government of India in four general conferences of UNESCO, commending Auroville project to those interested in UNESCO's ideals. However, soon after the Mother left her body in 1973, unhappy developments overtook this project and the Central Government were forced to take over

temporarily the management of Auroville from Sri Aurobindo Society and other under the Auroville (Emergency Provisions) Act, 1980 (59 of 1980). Initially, the Act was valid for 5 years but it had to be extended further in 1985 and 1987 as the efforts made to arrive at a solution, in consultation with the residents of Auroville and Sri Aurobindo Society, to provide for the permanent management of Auroville, had not succeeded. Efforts were, however, continued and a broad consensus has now emerged that it would be in the interest of further development of Auroville to establish a body corporate called the Auroville Foundation.

3. The properties relating to Auroville which are currently owned by Sri Aurobindo Society and other trusts and bodies founded by the Residents of Aurobindo will vest in the new body corporate. The management of all properties and assets relating to Auroville is presently with the Administrator of Auroville appointed under the Auroville (Emergency Provisions) Act, 1980. These assets were created by Sri Aurobindo Society and other bodies substantially with the aid of donations received from different organizations and individuals in and outside India (including the Central and State Governments) for purposes and activities of Auroville which under the proposed legislation will become the responsibility of the Foundation. The Government, therefore, proposes to acquire these assets without payment of any compensation and vest these in the proposed Auroville Foundation whose primary objective shall be to encourage and promote ideals and programmes envisaged in the charter of Auroville proclaimed by the Mother which are cherished in equal degree by the Sri Aurobindo Society and the Residents of Auroville.

4. As in the existing Auroville Act, there shall be an International Advisory Council to advise the Central Government and the Governing Board of the Foundation on matters concerning development and management of Auroville. The day to day activities will be looked after by the Residents through appropriate autonomous arrangements.

5. The management of the Foundation will vest in a Governing Board, as constituted by the Government from time to time. In order to avoid old controversies getting perpetuated in the Governing Board, the Government has decided in principle that none of the existing societies or trusts will have a right of representation on the Governing Board. All nominations to this body will, therefore, be on an individual basis.

6. The Bill incorporates the provisions mentioned above. - Gazette of India, 31-8-1988, Pt. II, Section 2, Ext., p. 23 (No. 46).

[29th September, 1988.]

An Act to provide for the acquisition and transfer of the undertakings of Auroville and to vest such undertakings in a foundation established for the purpose with a view to making long-term arrangements for the better management and further development of Auroville in accordance with its original charter and for matters connected therewith or incidental thereto.

WHEREAS Auroville was founded by the 'Mother' on the 28th day of February, 1965 as an international cultural township; AND WHEREAS in view of the serious difficulties which have arisen with regard to the management of Auroville, the management thereof had been vested in the Central Government for a limited period by the Auroville (Emergency Provisions) Act, 1980 (59 of 1980);

AND WHEREAS under the management of the Central Government and under the overall guidance of the International Advisory Council set up under the aforesaid Act, Auroville had been able to develop during the last eight years along several important lines and the residents of Auroville have also carried on activities for the development of Auroville which need further encouragement and consolidation;

AND WHEREAS Auroville was developed as a cultural township with the aid of funds received from different organisations in and outside India as also from substantial grants received from the Central and State Governments, and the United Nations Educational Scientific and Cultural Organisation also had, from time to time, reflected in its resolutions that the project on Auroville is contributing to international undertakings and promotion of peace;

AND WHEREAS for the purpose of encouraging, continuing and consolidating the aforesaid activities of Auroville, it is necessary in the public interest to acquire the undertakings of Auroville and to vest them in a body corporate established for the purposes;

BE it enacted by Parliament in the Thirty-ninth Year of the Republic of India as follows: --

Chapter I

Preliminary

1.

Short title.

- This Act may be called the Auroville Foundation Act, 1988,

2.

Definitions.

- In this Act, unless the context otherwise requires, --

(a)

"appointed day" means the date of commencement of this Act;

(b)

"Auroville" means so much of the undertakings as form part of, or are relatable to, the cultural township which is known as Auroville and the charter of which was proclaimed by the 'Mother' on the 28th day of February, 1988;

(c)

"Council" means the Auroville International Advisory Council constituted under sub-section (1) of section 21;

(d)

"Custodian" means the person who is appointed as the Custodian under sub-section (2) of section 7 in respect of the undertaking;

(e)

"Foundation" means the Auroville Foundation established under sub-section (1) of section 10;

(f)

"governing Board" means the Governing Board of the Foundation constituted under sub-section (1) of section 11;

(g)

"notification" means a notification published in the Official Gazette;

(h)

"prescribed" means prescribed by rules made under this Act;

(i)

"Residents' Assembly" means the Residents' Assembly of the Foundation;

(j)

"Society" means Sri Aurobindo Society, being a Society as defined in the West Bengal Societies Registration Act, 1961 (West Bengal Act XXVI of 1961.), and having its registered office at Calcutta in the State of West Bengal;

(k)

"specified date" means such date as the Central Government may, for the purposes of section 9, by notification, specify;

(l)

"trust" or "body" means a trust or body specified in the Schedule.

(m)

"undertakings" means the undertakings of the Society, trust or body which had vested in the Central Government under section 3.

Chapter II

Acquisition And Transfer Of Undertakings Of Auroville

3.

Transfer to and vesting in, the Central Government certain undertakings of the Society, trust and bodies.

- On the appointed day, so much of the undertakings of the Society, trust and body as form part of, or are relatable to Auroville, and the right, title and interest of the Society, trust and body, in relation to such undertakings, shall, by virtue of this Act, stand transferred to, and vest in, the Central Government.

4.

General effect of vesting.

(1)

The undertakings vested under section 3 shall be deemed to include all the assets, rights, leaseholds, powers, authorities and privileges, and all property (movable and immovable), including lands, buildings, works, workshops, projects, stores, instruments, machinery, automobiles and other vehicles, cash balances, funds, including reserve funds, investments and book debts of the Society, trust or body as form part of, or are relatable to, Auroville and all other rights and interests arising out of such properties as were immediately before the appointed day in the ownership, possession, power or control of the Society, trust or body, whether within or without India, and all books of account, registers, maps, plans and all other documents of whatever nature relating thereto.

(2)

All properties and assets as aforesaid which have vested in the Central Government under section 3 shall, by force of such vesting, be freed and discharged from any trust, obligation, mortgage, charge, lien and all other incumbrances affecting them or of any attachment injunction, decree or order of any court or other authority restricting the use of such properties or assets in any manner or appointing any receiver in respect of the whole or any part of such properties or assets shall be deemed to have been withdrawn.

(3)

Any licence or other instrument granted to the Society, trust or body in relation to any undertaking which has vested in the Central Government under section 3 at any time before the appointed day and in force immediately before the appointed day, shall continue to be in force on and after such day in accordance with its tenor in relation to and for the purposes of such undertaking or where the undertaking is directed under section 6 to vest in the Foundation, the Foundation shall be deemed to be substituted in such licence or other instrument as if such licence or other instrument had been granted to the Foundation and the Foundation shall hold it for the remainder of the period for which the Society, trust or body would have held it under the terms thereof.

(4)

If, on the appointed day, any suit, appeal or other proceeding, of whatever nature, in relation to any property or asset which has vested in the Central Government under section 3, instituted or preferred by or against the Society, trust or body is pending, the same shall not abate, be discontinued or be, in any way, prejudicially affected by reason of the transfer of the undertakings of the Society, trust or body or of anything contained in this Act, but the suit, appeal or other proceeding may be continued, prosecuted or enforced by or against the Central Government, or where the undertakings of the Society, trust or body are directed under section 6 to vest in the Foundation, by or against the Foundation.

5.

Central Government or Foundation to be liable for certain prior liabilities.

- Every liability in relation to any undertaking in respect of any period prior to the appointed day shall be enforceable against the Central Government and not against the Society, trust or body, or where the said undertakings are directed, under section 6, to vest in the Foundation, against the Foundation.

6.

Power of Central Government to direct vesting of the undertakings in the Foundation.

(1)

Notwithstanding anything contained in section 3 and 4, the Central Government shall, as soon as may be after the appointed day, direct, by notification, that the undertakings and the right, title and interest of the Society, trust or body in relation to such undertakings which had vested in the Central Government under section 3, shall, instead of continuing to vest in the Central Government, vest in the Foundation either on the date of publication of the notification or on such earlier or later date as may be specified in the notification.

(2)

Where the right, title and interest of the Society, trust or body in relation to the undertakings vest, under sub-section (1), in the Foundation, the Foundation shall, on and from the date of such vesting, be deemed to have become the owner in relation to such undertakings and the rights and liabilities of the Central Government in relation to such undertakings shall, on and from the date of such vesting, be deemed to have become, the rights and liabilities, respectively, of the Foundation.

7.

Management, etc., of the undertakings.

(1)

The general superintendence, direction, control and management of the affairs of the undertakings, the right, title and interest in relation to which have vested in the Central Government under section 3, shall, --

(a)

where a direction has been made by the Central Government under sub-section (1) of section 6, vest in the Foundation; or

(b)

where no such direction has been made by the Central Government, vest in a Custodian appointed day by the Central Government under sub-section (2), and, thereupon, the Foundation, or the Custodian so appointed, as the case may be, shall be entitled to exercise all such powers and do all such things as the Society, trust or body, as the case may be, is

authorised to exercise and do in relation to its undertakings.

(2)

The Central Government may appoint any person as the Custodian of the undertakings in relation to which no direction has been made by it under sub-section (1) of section 6.

(3)

The Custodian so appointed shall receive such remuneration as the Central Government may fix and shall hold office during the pleasure of the Central Government.

8.

Duties of person in charge of management by undertakings to deliver all assets.

(1)

On the vesting of the management of the undertakings in the Foundation or on the appointment of a Custodian under section 7, all persons in charge of the management of the undertakings immediately before such vesting or appointment shall be bound to deliver to the Foundation or Custodian, as the case may be, all assets, books of account, registers and other documents in their custody relating to the undertakings.

(2)

The Central Government may issue such directions as it may deem desirable in the circumstances of the case to the Custodian as to the powers and duties of the Custodian and such Custodian may, also, if it is considered necessary so to do, apply to the Central Government at any time for instructions as to the manner in which the management of the undertakings shall be conducted or in relation to any other matter arising in the course of such management.

(3)

Any person, who on the appointed day, has in his possession or under his control, any books, document or other papers relating to the undertakings shall be liable to account for the said books, documents or other papers to the Central Government or the Foundation, as the case may be, and shall deliver them up to the Central Government or the Foundation or to such person or body of persons as the Central Government or the Foundation may specify in this behalf.

(4)

The Central Government or the Foundation may take or cause to be taken, all necessary steps for securing possession of all undertakings which have vested in the Central Government or the Foundation under this Act.

(5)

the society, trust or body shall, within such period as the central government may allow in this behalf, furnish to that government a complete inventory of all its properties and assets, as on the appointed day pertaining to the undertakings and, for this purpose, the central government or the foundation shall afford to the society, trust or body all reasonable facilities.

9.

Certain powers of the Central Government or the Foundation.

- The Central Government or the Foundation shall be entitled to receive up to the specified date, to the exclusion of all other persons, any money due to the Society, trust or body in relation to its undertakings which have vested in the Central Government or the Foundation, as the case may be, and realised after the appointed day, notwithstanding that the realisation pertains to a period prior to the appointed day.

Chapter III

The Auroville Foundation

10.

Establishment and incorporation of the Foundation.

(1)

With effect from such date as the Central Government may, by notification, appoint in this behalf, there shall be established for the purpose of this Act, a Foundation, to be called the Auroville Foundation.

(2)

The Foundation shall be a body corporate by the name aforesaid, having perpetual succession and a common seal with power to acquire, hold and dispose of property, both movable and immovable, and to contract and shall by the said name sue and be sued.

(Establishment and in-corporation of the Foundation.)

(3)

The Foundation shall consist of the following authorities, namely :--

(a)

the Governing Board;

(b)

the Residents' Assembly;

(c)

the Auroville International Advisory Council

11.

Governing Board.

(1)

The Governing Board shall consist of the following members, namely :--

(i)

not more than seven members to be nominated by the Central Government from amongst persons, who have--

(a)

rendered valuable service to Auroville;

(b)

dedicated themselves to the ideals of life-long education, synthesis of material and spiritual researches or human unity;

(c)

contributed significantly in activities that are being pursued or are envisaged to be promoted in Auroville, including activities relating to environment, afforestation, arts and crafts, industry, agriculture, humanities, sciences and integral yoga;

(ii)

two representatives of the Central Government to be nominated by it.

(2)

The Central Government shall nominate a Chairman of the Governing Board from amongst the members nominated by it under clause (i) of sub-section (1).

(3)

The general superintendence, direction and management of the affairs of the Foundation shall vest in the Governing Board which may exercise all the powers and discharge all the functions which may be exercised or discharged by the Foundation.

(4)

The Governing Board may associate with itself in such manner and for such purposes as may be prescribed, any persons whose assistance or advice it may desire in complying with any of the provisions of this Act and a person so associated shall have the right to take part in the discussions of the Governing board relevant to the purposes for which he has been associated, but shall not have the right to vote.

(5)

No act or proceeding of the Governing Board or any committee appointed by it under section 16 shall be invalidated merely by reason of,--

(a)

any vacancy in, or any defect in the constitution of, the Governing Board or such committee; or

(b)

any defect in the nomination of a person acting as a member of the Governing Board or such committee; or

(c)

any irregularity in the procedure of the Governing Board or such committee not affecting the merits of the case.

12.

Term of office of members.

(1)

Subject to the provisions of this section, the term of office of the members of the Governing Board including the Chairman shall be four years from the date of their nomination.

(2)

An outgoing member of the Governing Board shall be eligible for re-nomination.

(3)

The term of office of a member nominated to fill a casual vacancy in the Governing Board shall continue for the remainder of the term of the member in whose place he is nominated.

(4)

A member may resign his office by writing under his hand addressed to the Central Government but he shall continue in office until, his resignation is accepted by that Government.

13.

Salary and allowances and officer conditions of service of Chairman.

- The Chairman of the Governing Board shall be entitled to such salary and allowances and such conditions of service in respect of leave, pension, provident fund and other matters as may, from time to time, be fixed by the Central Government.

14.

Meetings of the Governing Board.

(1)

The Governing board shall meet at least once a year at Auroville at such time as may be fixed by the Chairman of the Governing Board.

(2)

All the decisions at any meeting of the Governing Board shall be taken by a majority of the members present and voting: Provided that in the case of equality of votes, the Chairman of the Governing Board shall have a casting vote.

15.

Secretary and other officers of the Foundation.

(1)

The Central Government shall appoint a Secretary to the Foundation to exercise such powers and perform such duties under the Chairman of the Governing Board as may be prescribed or as may be delegated to him by the Chairman.

(2)

The Secretary shall be entitled to such salary and allowances and such conditions of service in respect of leave, pension, provident fund and other matters as may, from time to time, be fixed by the Central Government.

(3)

Subject to such control, restrictions and conditions as may be prescribed, the Governing board may appoint such other officers and employees as may be necessary for the efficient performance of its functions.

(4)

The Chairman, Secretary and other officers and employees of the Foundation shall not undertake any work unconnected with their duties under this Act except with the permission of the Central Government.

16.

Committees of the Governing Board.

(1)

The Governing board may appoint such committees as may be necessary for the efficient discharge of its duties and performance of its functions under this Act.

(2)

The Governing Board shall have the power to co-opt as members of any committee, appointed under sub-section (1), such number of persons who are not members of the Governing Board as it may think fit, and the persons so co-opted shall have the right to attend the meetings of the committee, and take part in the proceedings of the committee, but shall not have the right to vote.

17.

Powers and functions of the Governing Board.

- The powers and functions of the Governing Board shall be--

(a)

to promote the ideals of Auroville and to co-ordinate activities and services of Auroville in consultation with the Residents' Assembly for the purposes of cohesion and integration of Auroville;

(b)

to review the basic policies and the programmes of Auroville and give necessary directions for the future development of Auroville;

(c)
to accord approval to the programmes of Auroville drawn up by the Residents' Assembly ;

(d)
to monitor and review the activities of Auroville and to secure proper management of the properties vested in the Foundation under section 6 and other properties relatable to Auroville;

(e)
to prepare a master-plan of Auroville in consultation with the Residents' Assembly and to ensure development of Auroville as so planned;

(f)
to authorise and co-ordinate fund-raising for Auroville and to secure proper arrangements for receipts and disbursement of funds for Auroville.

18.
Residents Assembly.

(1)
The Residents' Assembly shall consist of all the residents of Auroville who are for the time being entered in the register of residents maintained under this section.

(2)
The Secretary to the Governing board shall maintain the register of residents in such manner as may be prescribed and all the persons who are residents of Auroville and who are of the age of eighteen years and above are entitled to have their names entered in the register on an application made to the Secretary in such form as may be prescribed.

(3)
All the names of residents' which have been included in the register maintained by the Administrator under section 5 of the Auroville (Emergency Provisions) Act, 1980 (59 of 1980.) immediately before the appointed day, shall be deemed to have been included in the register maintained under this section.

19.
Functions of Residents Assembly.

(1)
The Resident's Assembly shall perform such functions as are required by this Act shall advise the Governing Board in respect of all activities relating to the residents of Auroville.

(2)
In particular , and without prejudice to the foregoing powers, the Residents' Assembly may--

(a)
allow the admission or cause the termination of persons in the register of residents in accordance with the regulations made under section 32;

(b)
organise various activities relating to Auroville;

(c)
formulate the master plant of Auroville and make necessary recommendations for the recognition of organisations engaged in activities relatable to Auroville for the approval of the Governing Board;

(d)
recommend proposals for raising funds for Auroville for the approval of the Governing Board.

(3)
For the purpose of carrying of its functions, the Residents' Assembly may establish such committees as it may consider necessary which shall represent it in relation to the functions to be performed by the Governing Board.

20.
Working Committee or Residents Assembly.

(1)
There shall be a Working Committee of the Residents' Assembly which shall assist the Residents' Assembly or, as the case may be, the Governing Board, in discharging its duties under this Act.

(2)

The Working Committee shall consist of not more than seven members to be chosen by the Residents' Assembly from among themselves.

(3)

The manner of choosing the member of the Working Committee and their term of office shall be such as may be decided by the Resident's Assembly.

(4)

The Working Committee may, with the approval of the Governing Board, create or constitute other organisations, trusts, societies or association relatable or Auroville if the Working Committee is satisfied that such organisations, trusts, societies or associations have--

(a)

their headquarters at Auroville;

(b)

declared than in all matters relating to Auroville they shall act in conformity with the decisions of the Governing Board and that their main object is to promote the ideals laid down in the Charter of Auroville proclaimed by the 'Mother' on the 28th day of February, 1968.

21.

Advisory Council.

(1)

The Auroville International Advisory Council shall consist of not more than five members nominated by the Central Government.

(2)

The Central Government may nominate the members of the Council from amongst persons who in its opinion are devoted to the ideals of human unity, peace and progress.

(3)

The Council may, on its own motion or on a reference made to it by the Governing Board, advise the Governing Board on any matter relating to the development and management of Auroville.

(4)

In tendering any advise to the Governing Board, the Council shall endeavour to secure that--

(a)

the ideals for which Auroville has been established are encouraged, and

(b)

the residents of Auroville are allowed freedom to grow and develop activities and institutions for the fulfilment of the aspirations and programmes envisaged in the said Charter of Auroville.

(5)

There shall be a Chairman of the Council who shall be declared by the members of the Council from among themselves.

(6)

The term of office of, the method of filling casual vacancies among, and the allowances and other remuneration, if any, payable to, the members of the Council, shall be such as may be determined by the Central Government.

(7)

The Council shall have power to regulate its own procedure.

22.

Dissolution of the Foundation.

(1)

The Central Government may, by notification and for reasons to be specified therein, direct that the Foundation shall be dissolved from such date and for such period as may be specified in the notification :

Provided that before issuing any such notification, the Central Government shall give a reasonable opportunity to the Foundation to make representation against the proposed dissolution and shall consider the representation, if any, of the Foundation.

(2)

When the Foundation is dissolved under the provisions of sub-section (1),--

(a)

all members of the Governing Board, notwithstanding that the terms of their office had not expired, shall, from the date of dissolution, vacate their offices as such members;

(b)

all powers and duties of the Foundation shall, during the period of dissolution, be exercised and performed by such person or persons as the Central Government may appoint in this behalf;

(c)

all properties vested in the Foundation shall, during the period of dissolution, vest in the Central Government; and

(d)

as soon as the period of dissolution expires, the Foundation shall be reconstituted in accordance with the provisions of this Act.

23.

Grant by Central Government to the Foundation.

- For the purpose of enabling the Foundation to discharge its functions under this Act, the Central Government may, after due appropriation made by Parliament by law in this behalf, pay to the Foundation, in each financial year, such sums of money as that Government considers necessary by way of grant, loan or otherwise.

Chapter INVITATION

Miscellaneous

24.

Duty to furnish returns, etc.

(1)

The Governing Board shall furnish to the Central Government at such time and in such form and manner as may be prescribed, or as the Central Government may direct, such returns and statements and such particulars as the Central Government may, from time to time, require.

(2)

Without prejudice to the provisions of sub-section (1), the Governing Board shall, as soon as possible after the end of each financial year, submit to the Central Government a report in such form and before such date as may be prescribed giving a true and full account of its activities, policy and programmes during the previous year.

(3)

A copy of the report received under sub-section (2) shall be laid, as soon as may be, after it is received before each House of Parliament.

25.

Borrowing powers of the Governing Board.

- Subject to such rules as may be made in this behalf, the Governing Board shall have the power to borrow on the security of the properties of Auroville or any other asset for carrying out the purposes of this Act.

26.

Accounts and audit.

(1)

The Governing Board shall maintain proper accounts and other relevant records and prepare an annual statement of accounts, including the income and expenditure account and the balance-sheet in such form as may be prescribed by the Central Government in consultation with the Comptroller and Auditor General of India.

(2)

The accounts of the Foundation shall be audited by the Comptroller and Auditor General of India at such intervals as may be specified by him and any expenses incurred in connection with such audit shall be payable by the Foundation to the Comptroller and Auditor General.

(3)

The Comptroller and Auditor General of India and any person appointed by him in connection with the audit of the accounts of the Foundation shall have the same rights and privileges and authority in connection with such audit as the Comptroller and Auditor General of India has in connection with the audit of Government accounts and, in particular, shall have the right to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the officer of the Foundation.

(4)

The accounts of the Foundation, as certified by the Comptroller and Auditor General of India or any other person appointed by him in this behalf together with the audit report thereon shall be forwarded annually to the Central Government and that Government shall cause the same to be laid before each House of Parliament.

27.

Act to have overriding effect.

- The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or in any instrument having effect by virtue of any law other than this Act, or in any decree or order of any court, tribunal or other authority.

28.

Contracts to cease to have effect unless ratified by the foundation.

- Every contract entered into by the Society, trust or body in relation to its undertakings for any service, sale or supply, and in force immediately before the appointed day, shall, on and from the expiry of one hundred and eight days from that day, cease to have effect unless such contract is, before the expiry of the said period, ratified in writing by the Central Government or, as the case may be, the Foundation, and in ratifying such contract, the Central Government or, as the case may be, the Foundation may make such alterations or modifications therein as it may think fit:

Provided that the Central Government or, as the case may be, the Foundation shall not omit to ratify a contract and shall not make any alteration or modification therein,--

(a)

unless it is satisfied that such contract is unduly onerous or has been entered into in bad faith or is detrimental to the interests of the Central Government or, as the case may be, the Foundation; and

(b)

except after giving the parties to the contract a reasonable opportunity of being heard and except after recording in writing its reasons for its refusal to ratify the contract or for making any alteration or modification therein.

29.

Penalties.

- A person who,--

(a)

having in his possession, custody or control any property forming part of the undertakings of the Society, trust or body, wrongfully withholds such property from the Central Government or, as the case may be, the Foundation or any person or body of persons authorised by that Government or the Foundation; or

(b)

wrongfully obtains possession of, or retains, any property forming part of any undertaking of the Society, trust or body or wilfully withholds or fails to furnish to the Central Government or, as the case may be, the Foundation or any person or body of persons authorised by that Government or the Foundation, any documents relating to such undertakings which may be in his possession, custody or control, or fails to deliver to the Central Government or, as the case may be, the Foundation or any person or body of persons authorised by that Government or the Foundation any assets, books of account, registers or other documents in his possession, custody or control relating to the undertakings of the Society, trust or body; or

(c)

wrongfully removes or destroys any property forming part of the undertakings of the Society, trust or body, shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to ten thousand rupees, or with both.

30.

Protection of action taken in good faith.

- No suit, prosecution or other legal proceedings shall lie against the Central Government or any officer of that Government or the Custodian or any officer or other person authorised by that Government or the Foundation for anything which is in good faith done or intended to be done under this Act.

31.

Power to make rules.

(1)

The Central Government may be, notification, make rules for carrying out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :--

(a)

the manner in which and the purpose for which any person may be associated with the Governing Board under sub-section (4) of section 11;

(b)

the powers and duties which the Secretary to the Governing Board may perform under sub-section (1) of section 15;

(c)

the control, restrictions and conditions subject to which the Governing Board may appoint officers and employees under sub-section (3) of section 15;

(d)

the manner in which the register of residents may be maintained under sub-section (2) of section 18;

(e)

the time within which and the form and manner in which the Governing Board may furnish returns and reports under sub-section (1) of section 24;

(f)

the form and the date before which the Governing Board shall submit reports to the Central Government under sub-section (2) of section 24;

(g)

the rules subject to which the Governing Board shall have the power to borrow under section 25;

(h)

any other matter which is to be or may be prescribed.

32.

Power to make regulations.

(1)

The Governing Board may make regulations, not inconsistent with this Act and the rules made thereunder, for enabling it to discharge its function under this Act.

(2)

Without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely :--

(a)

the procedure to be following at meetings of the Governing Board or at the meetings of the committees appointed by it and the number of members which shall form a quorum at such meetings;

(b)

the delegation to the Chairman, other members, Secretary or other officers of the Governing Board, of any of the powers, duties of the Governing Board under this Act ;

(c)

the travelling and other allowances payable to persons associated under sub-section (4) of section 11 or co-opted under sub-section (2) of section 16;

(d)

the pay and allowances and leave and other conditions of service of officers (other than those appointed by the Central Government) and other employees of the Foundation;

(e)

the maintenance of the accounts of the Foundation;

(f)

the maintenance of the registers and other records of the Foundation and its various committees;

(g)

the appointment by the Governing Board of agents to discharge on its behalf any of its functions;

(h)

admission or termination of persons in the register of residents.

(3)

No regulation made by the Governing Board shall have effect until it has been approved by the Central Government and published in the Official Gazette, and the Central Government, in approving the regulation, may make changes therein which appear to it to be necessary.

33.

Rules and regulations to be laid before Parliament.

- Every rule or regulation made under this shall be laid as soon as may be after it is made before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions and if before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation, or both Houses agree that the rule or regulation should not be made, the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.

34.

Power to make difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order, not inconsistent with the provisions of this Act, remove the difficulty :

Provided that no such order shall be made after the expiry of a period of two years from the appointed day.

(2)

Every order made under this section shall be laid, as soon as may be after it, is made, before each House of Parliament.

THE SCHEDULE

[See section 2 (l)]

TRUSTS AND BODIES

1. Auroville Trust, Auroville.
2. Artisane Trust, Auroville.
3. Auroservice d'Auroville Trust, Pondicherry.
4. Aurelec Trust, Auroville.
5. Auromitra, Auroville.
6. Centre for Scientific Research, Auroville.
7. Sri Aurobindo International Institute of Educational Research, Auroville.
8. Altecs Trust, Auroville.
9. New Engineering Trust, Auroville.
10. Auro Trust, Pondicherry.
11. Service Trust, Pondicherry.
12. Auro Press Trust, Pondicherry.
13. New Trust, Pondicherry.

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